Trial Transcript

Case Number: CGC-21-594102
Date: April 23, 2025

In the matter of:

FRANCISCUS DYLAN ROSARIO v SUBHI ABDELHALIM, et al.

TRIAL

Day 11

CERTIFIED COPY

Reported by:
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IN THE SUPERIOR COURT OF THE STATE OF CALIFORNIA
IN AND FOR THE COUNTY OF SAN FRANCISCO - UNLIMITED
BEFORE THE HONORABLE GARRETT L. WONG
DEPARTMENT 504

FRANCISCUS DYLAN ROSARIO,

Plaintiff,

vs. Case No. CGC-21-594102

SUBHI ABDELHALIM;
INDIVIDUALLY, AND DBA
SONOMA LIQUOR, DOES
1 TO 50,

Defendants.
_____/

REPORTER'S TRANSCRIPT

WEDNESDAY, APRIL 23, 2025

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Location: San Francisco Superior Court
400 McAllister St., Dept 504
San Francisco, California 94102

APPEARANCES

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IN PRO PER

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Reported by: Dennis M. Souza, CSR# 3893

SESSIONS

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WEDNESDAY, APRIL 23, 2025

AFTERNOON SESSION 3

VERDICT READ

April 23, 2025 San Francisco, California

PROCEEDINGS

THE BAILIFF: Come to order. Department 504 is now in session.

THE COURT: We are on the record. The record should reflect that the parties are present along with Counsel, and the Jury has issued a question to the Court.

It is Jury request number three.

But before we deal with that, there is also a motion for a mistrial?

MR. ROSARIO: Yes, Your Honor. I am requesting a mistrial on the grounds of Juror misconduct.

I have reason to believe that one or more of the jurors accessed or relied on outside information -- specifically vehicle codes, which is immaterial -- which was not introduced into evidence.

This undermines my rights of a fair trial and violates the Court's instruction that the Jury must decide the case solely on the evidence presented in Court. I respectfully move for a mistrial.

MS. NAVARATNASINGHAM: Your Honor, we oppose any request for mistrial.

There is no evidence whatsoever at this point that the Jury even considered that information and the Court instructed them not to consider that information.

MR. ROSARIO: The Court also, through its own admission, clarified something to the Jury by submitting a actual Vehicle Code, which was not introduced during the evidence, and by that cause alone, Your Honor, you had inserted information into the Jury which then -- by providing them information that was not available in the evidence itself.

I do agree with the first one, the response to number one: You may not consider it because it is not part of the instructions.

But when you added that into the second one, it caused this, because the Jury had to make the decision based upon the available evidence that was there.

THE COURT: I see. So you don't have an objection to the instruction given in response to Jury request number one?

MR. ROSARIO: No. I have objection to the fact they were accessing or requesting all of them anyways. But in number one, you know, I understand what's going on here.

They should not have been accessing external information or requesting Vehicle Code sections that were not presented during the trial in view of the evidence.

The second one, they asked something that they did not have. And, again, that is information that was not presented in the evidence and suddenly

new evidence or new information has been inserted by yourself.

So those two clauses alone, there was no request for a code here. You provided a code.

Then the second one, they asked for a code which was outside -- which was extraneous information that was not introduced in the evidence.

That is grounds for a mistrial.

MS. NAVARATNASINGHAM: Your Honor, Officer Fernandez -- the question specifically was asked to Officer Fernandez, who testified -- excuse me -- his testimony about the term of a vehicle. So to provide that clarification of a legal definition from the Vehicle Code, we think it is appropriate.

As to the other sections that was simply asking for another Jury instruction and the Court instructed them not to consider that, and there is no evidence there has been any prejudice to Plaintiff because of that.

MR. ROSARIO: Absolutely that is prejudice. The officer and the Defense had an opportunity to enter that Vehicle Code as well as the definition of a vehicle in their evidence. They did not do that. Inserting that information into the Jury after the fact, after they have gone into the sealed room back there, essentially, is extraneous influence over the Jury and their knowledge about this case.

Secondly, them asking for that information in

question number one means that either somebody has accessed external information specifically about vehicle codes in order to clarify.

The Defense should have also -- if they wanted to have those codes in there, they should have provided them to the Jury. They did not.

Both of those facts prove there is extraneous Juror misconduct of accessing external information that severely prejudices my case.

THE COURT: All right. Is the matter submitted?

MR. ROSARIO: Yeah. Thank you, Your Honor.

MS. NAVARATNASINGHAM: Yes.

THE COURT: All right. First, the motion for a mistrial is denied.

With regard to Jury request form number one, first of all, you did not object to the language that was submitted to the Jury.

The Court presented that response in Jury request number one to each party before delivering it to the Jury.

You've waived that request, sir.

In that matter, with regard to Jury request form number one, the Court answered: You may not consider Vehicle Code Sections 22107 and or 21804 subdivision A, nor will the Court instruct the Jury on those provisions.

That is a sufficient instruction for the Jury

to abide by.

There has been no evidence that the Jury has considered that as a part of its deliberations.

Further, I will point out -- I don't think I needed to point this out -- but neither Vehicle Codes Section 22107 nor 21804 subdivision A were part of the evidence.

They simply are not permitted to consider that as evidence in the case, period.

Now turning to Jury request form number two, the relevant request here from the Jury, in pertinent part, "Is there a relevant legal definition of 'vehicle?', close quote" that we should consider in assessing this testimony?"

Question.

Answer: Vehicle Code Section provides, quote, "a vehicle is a device by which any person or property may be propelled, moved or drawn upon a highway excepting a device moved exclusively by human power or used exclusively upon stationery rails or tracks."

Vehicle Code Section 360 defines "highway" as: "A way or place of whatever nature publicly maintained and open to the use of the public for purposes of vehicle travel. 'Highway' includes street," close quote.

The Court -- even if this was something that was gratuitous on the part of the Court, the Court is

defining something that is the word "vehicle" for the purpose of the jury's use in this matter.

I find no harm nor prejudice against either party in this case.

It is simply a neutral definition coming from the Vehicle Code which defines vehicle and highway.

MR. ROSARIO: Inaccurate, Your Honor. You enhanced it by adding that highways also indicates street.

That is not in the actual black-letter law. You enhanced the statement and you sent that back.

That is a direct influence over the Jury.

THE COURT: Sir, do you want to take a look at this code section?

It says, "Highway includes street", close quote.

MR. ROSARIO: Understood.

THE COURT: The answer to Jury request number three, which provides, in pertinent part, "If our finding is yes to question one in the verdict form and our finding is no to question number two in the verdict form, what are the implications of that for the Defendant?" The answer is: Please follow the instruction that follows question two.

I don't think I need to reiterate that question.

"Please follow the instructions that follow the yes-or-no query after question two."

That's all I need to put.

I am not going to indicate what the implications are or anything else about their decision.

It's frankly not relevant or pertinent to what they have to decide in this matter.

The Court's going to complete that, and if you have an objection, you can make that now, sir.

MR. ROSARIO: Of course we have an objection. Not on the other clarification as to the instructions in the verdict form as they were written by the Defense that I agreed to.

I would like to bring to the Court's attention on the other matter, and make sure that is preserved on the record, that we asked for the mistrial due to extemporaneous information being accessed by the Jury.

THE COURT: Sir, it is denied.

MR. ROSARIO: I understand.

THE COURT: The language states, in pertinent part: "Please follow the instructions after you answer yes or no to question two.

You will have a copy of that. The clerk will hand you a copy of each question -- the response to question three.

(Short recess).

THE BAILIFF: Department 504 is now in session.

THE COURT: We are back on the record. And the record should reflect that we have all parties present along with Counsel.

And I have been informed by my courtroom clerk that Mr. Rosario seeks to have his objections as to Jury request number -- form number one and number two placed on the record.

MR. ROSARIO: Yes.

THE COURT: The Court will indicate even though -- well, I will simply point out there was no objection raised at the time that we completed --

MR. ROSARIO: That wasn't our understanding.

THE COURT: Excuse me, sir.

That there was no objection entered as to the answer to Jury request number one or to Jury request number two; that, in fact, there was a acquiescence by you, Mr. Rosario, based on the fact that some of this, as you put it, was somewhat common knowledge to everyone.

So you may certainly put your objection down as to each of these responses to the Jury for the record. Go ahead.

MR. ROSARIO: Right. So pursuant to California Rules of Court 8.137, the Plaintiff objects to Court statement that no objection was made to the Jury instructions.

Given that outside the presence of the Court Reporter, Plaintiff did object to any language

or materials sent back because the information was already common knowledge, was unnecessary to be defined, specifically also the one that was defined by yourself to the Jury themselves.

The citation on -- more specifically, the citation on what constitutes a vehicle, I did object to that, and that is inaccurate also.

So -- but the record does not reflect the Reporter's absence.

So Plaintiff requests the record be corrected or supplemented pursuant to the Code of 8.137.

I would like to either reconstruct the record or we file my objection for that.

THE COURT: Well, your objection is noted.

What's the correction?

MR. ROSARIO: The correction is that I objected to any of the material going back, the codes, because they were common knowledge; it wasn't necessary for anything to be sent back to the Jury, anything, any kind of clarification of vehicles, anything like that. It was unnecessary.

I stated that. It was all common knowledge.

THE COURT: Very well. Your objection's noted.

Anything further?

MS. NAVARATNASINGHAM: I have nothing to add, Your Honor, to what Your Honor said.

THE COURT: All right. Your objections are

noted. They are overruled and the Court believes that this is within its discretion to issue these responses in order to clarify for the Jury some issues that they have raised by way of their requests.

MR. ROSARIO: So at this point, we are reconsidering on motion -- or on the questions in number one, based upon the fact that there is evidence of external extemporaneous access. This is a second chance here.

Again, we are requesting for the mistrial, stating that we feel there is an objection to that. And as of our time right now, we are again reconsidering for the objection that the extemporaneous information about vehicle codes shows that there is evidence and prejudice against the Plaintiff's position based upon external research.

We are, again, objecting. We feel that there is absolutely one hundred percent evidence of extemporaneous Juror misconduct on the record, on the record this time.

THE COURT: Very well. It is overruled.

Anything further?

MR. ROSARIO: I guess that is it.

Does that settle the record?

THE COURT: I think so. Anything else?

MR. ROSARIO: Yeah. We believe that --

THE COURT: No, sir. You have already provided the Court and submitted your arguments to

clarify what you believe is an objection to the Court's response to Jury request form number one and Jury request form number two.

That has been submitted. The Court has considered it. And the Court has overruled that --

MR. ROSARIO: Right.

THE COURT: -- overruled that objection. So you have nothing left, unless there is some other issue you wish the Court to take up.

MR. ROSARIO: We find this highly irregular in the proceedings under CCP 657 and we believe there is an error.

THE COURT: 657, what does it state?

MR. ROSARIO: Irregularities of the proceedings.

THE COURT: What are the irregularities, sir?

MR. ROSARIO: The jurors -- I just went over that, the jurors having access to extemporaneous information, first off; second off, you sending back enhancements to a testimony that was not in, and any of the enhancements or any of the evidence would be used in their assessment.

THE COURT: Sir, CCP Section 657 are grounds for a new trial.

You are premature.

MR. ROSARIO: I asked for a mistrial, Your Honor, on these grounds, that there has been information accessed by the Jury.

So that is what we are saying. There is a irregularity of this.

THE COURT: That is denied.

MR. ROSARIO: Okay. I understand, but -- I don't agree with it, but --

THE COURT: Very well. We are adjourned.

(Short recess).

THE COURT: All right. We have a verdict. The record should indicate the jurors are not present.

We will have the jurors brought into the courtroom now. The record should reflect that all parties are present, including Counsel.

(Whereupon, the Jury entered the courtroom).

THE COURT: Very well. Please be seated. Thank you. The record should indicate that we have the 12 deliberating jurors present in the Court and all parties, including Counsel.

The record should indicate now that the Bailiff has informed me that the Jury has reached a verdict.

Will the Presiding Juror please raise his or her hand? Juror No. 12.

A. Yes.

Q. Has the Jury reached a verdict, Juror No. 12?

A. The Jury has reached a verdict, Your Honor.

Q. Thank you, sir.

THE COURT: Mr. Bailiff, please retrieve the verdict form.

Very well. The verdict appears to be correctly dated and signed.

Madam Clerk, would you read the verdict into the record, please.

THE CLERK: Superior Court of California in and for the County of San Francisco, Unlimited Jurisdiction.

Franciscus Dylan Rosario, Plaintiff versus Subhi Abdelhalim, individually, and dba Sonoma Liquor, Does 1 to 50, Defendants; Case No. CGC-21-594102. Verdict.

We answered the questions submitted to us as follows:

One: Was Subhi Abdelhalim negligent?

Answer: No.

Signed and dated April 23, 2025 by the Presiding Juror.

THE COURT: Very well.

Mr. Rosario, would you like to poll the Jury?

MR. ROSARIO: Excuse me?

THE COURT: Do you wish to poll the Jury?

MR. ROSARIO: How does that work?

THE COURT: Well, we will ask the 12 jurors whether that is the verdict that they have agreed upon as read by the clerk.

Do you wish to have that done?

MR. ROSARIO: Yeah, of course.

THE COURT: Very well, Madam Clerk.

THE CLERK: For question one: Was Subhi Abdelhalim negligent?

Answer: No.

If this was your true and correct verdict as you answered, please raise your hand.

Let the record reflect that nine jurors have raised their hand.

THE COURT: Very well.

All right. Do the parties waive reading of the verdict as recorded? Mr. Rosario?

MR. ROSARIO: Excuse me?

THE COURT: I am going to have the clerk record the verdict now.

MR. ROSARIO: Okay.

THE COURT: Do you waive reading of the verdict as recorded; in other words, do we have to read the verdict again?

MR. ROSARIO: For the record, let's go ahead and please do that.

THE COURT: Very well.

MR. ROSARIO: Yes.

THE CLERK: From the top down?

THE COURT: Yes.

THE CLERK: Superior Court of California in and for the County of San Francisco Unlimited Jurisdiction, Franciscus Dylan Rosario, Plaintiff versus Subhi Abdelhalim, individually, and dba Sonoma Liquor, Does 1 through 50, Defendants. Case No.

CGC-21-594102. Verdict.

We answered the questions submitted to us as follows: One was Subhi Abdelhalim negligent?

Answer: No.

Signed and dated April 23, 2025 by the presiding Juror and recorded.

THE COURT: Very well. All right.

I have one final instruction for you.

Members of the Jury, this completes your duties in this case.

On behalf of the parties and their attorneys, thank you for your time and your service.

It can be a great personal sacrifice to serve as a Juror, but by doing so, you are fulfilling an extremely important role in the California system of justice.

Each of us has the right to a trial by Jury, but that right would mean very little unless citizens such as you are willing to serve when called to do so.

You've been very attentive and conscientious during the trial and I am grateful for your dedication.

Throughout the trial, I continued to admonish you that you could not discuss the facts of the case with anyone, other than your fellow jurors, and then only during deliberations when all 12 jurors were present.

I am now relieving you from that restriction;

but I have another admonition.

You now have the absolute right not -- to discuss or not to discuss your deliberations and verdict with anyone.

It is appropriate for the parties, their attorneys or representatives to ask you to discuss the case, but any such discussion may occur only with your consent and only if the discussion is at a reasonable time and place.

You should immediately report any unreasonable contact to the Court.

If you do choose to discuss the case with anyone, please feel free to discuss it from your own perspective but be respectful of the other parties and their views and feelings.

And you should also know, as I mentioned before, your contact information will not be released by the Court unless we have your consent.

So if you are contacted through some other fashion, it is through public means and not through the Court.

We will never release your information unless -- unless we have your consent.

Very well. Thank you for your time and your service and you are now discharged.

If you have things in the back, I think the Bailiff will take you back to retrieve your belongings.

And thank you again for your service. I appreciate it. Thank you.

THE BAILIFF: Follow me, please.

(Whereupon, the Jury was excused from the courtroom).

THE COURT: Very well, anything further?

MS. NAVARATNASINGHAM: No, Your Honor.

THE COURT: Do we need to set a date for a cost hearing at some point?

MS. NAVARATNASINGHAM: Yes, Your Honor. Would Your Honor like us to prepare a judgment as well, like a formal judgment?

THE COURT: Yes, please prepare a judgment and share that with Mr. Rosario.

MS. NAVARATNASINGHAM: Yes.

THE COURT: And see if you can schedule at your mutual convenience a date within which to have a hearing on costs, as the prevailing party.

MS. NAVARATNASINGHAM: Thank you, Your Honor.

THE COURT: Very well.

MS. NAVARATNASINGHAM: Thank you, Your Honor.

(Whereupon, the Court was in recess at 3:49 p.m.)

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STATE OF CALIFORNIA)
) ss.
COUNTY OF SAN FRANCISCO)

I, DENNIS M. SOUZA, CSR No. 3893, do hereby certify that I am an official reporter Pro-Tem of the Superior Court of the State of California, in and for the County of San Francisco, and that as such, I was present and reported in stenotype the proceedings had in the within-entitled matter at the time and place herein set forth, consisting of these proceedings held on April 23, 2025, and that the same is a full, true and correct transcription of said stenotype notes as taken by me in said matter, to the best of my ability.

DATED: San Francisco, California, this 23rd day April, 2025.

DENNIS M. SOUZA, CSR #3893

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